

- The opposing party and the public could not obtain it as a normal court filing.
- The judge received and relied on a key piece of merits evidence off the record and ex parte, contrary to the prohibition on ex parte communications about pending matters in Canon 3(A)(5) and the requirement that judicial decisions be based on evidence properly in the record. (Michigan Courts)

9. September 9, 2025 – Order continuing suspension, referencing off-record evaluation.

- On or about September 9, 2025, Judge McNeill issued a written order continuing the suspension of my parenting time “until further order,” explicitly referencing the existence or content of the HealthWest evaluation.
- This order was entered **without** a full evidentiary hearing on the disputed allegations and **without** explicit findings that I posed a danger to Lincoln or that unsupervised parenting time was unsafe.
- The continuation relied, at least in part, on the off-record, chambers-only evaluation.

E. Extended Delay and Accumulated Harm

10. Multiple missed parenting-time blocks (August–September 2025).

By mid-September 2025, as detailed in my Master Timeline (Appendix A), the ex parte suspension and its extensions had caused me to miss:

- Two regular alternating weekends in August (August 8–12 and August 22–26);
- The full Labor Day week block (August 29–September 2);
- Additional alternating weekends in September (September 5–9 and September 19–23).

In total, more than a month of scheduled parenting time was denied, and I had no contact with my three-year-old son for roughly ninety days from July 29 onward. The result was profound emotional harm to both me and my child, who had been accustomed to frequent, loving contact with his father.

11. October 8, 2025 – Further delay; hearing pushed out to October 29.